

Amended Complaint to avoid confusion in the Court's register of action in light of the "first amended complaint" on file. Plaintiff is also advised the Court expects compliance with Code of Civil Procedure section 471.5 which requires service of an amended complaint "upon the defendants affected thereby." (Code Civ. Proc. § 471.5(a).) Based on this ruling, and concurrent rulings sustaining demurrers by the other defendants, any amended complaint must be served on all defendants.

11. 9:00 AM CASE NUMBER: C25-02273
CASE NAME: LINDA WILLIAMS VS. SAN RAMON REGIONAL MEDICAL CENTER
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: TOSCANO, DR. JOSEPH
TENTATIVE RULING:

Before the Court is a demurrer to the first amended complaint by defendant Dr. Joseph Toscano. For the reasons set forth, and on the grounds and subject to the terms and provisions of this ruling, the demurrer is **sustained, with leave to amend**.

Background

The background of the case is set forth in the Court's tentative ruling for Line 10 for the demurrer to the first amended complaint ("FAC") in which Dr. Toscano joined.

Legal Standards Governing Demurrer

In ruling on the demurrer, the Court must accept as true all well-pled factual allegations of the complaint, but not legal or factual conclusions or contentions of law. (*City of Dinuba v. County of Tulare* (2007) 41 Cal. 4th 859, 865; *Carloss v. County of Alameda* (2015) 242 Cal. App.4th 116, 123 [citing *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318].) In determining whether the complaint states a claim for relief, the Court gives "the complaint a reasonable interpretation, reading it as a whole and its parts in their context. [Citation omitted.]" (*Evans v. City of Berkeley* (2006) 38 Cal. 4th 1, 6.) The Court also considers matters of which the Court can properly take judicial notice. (*Carloss v. County of Alameda, supra*, 242 Cal.App.4th at 123.)

A general demurrer may be sustained when the facts alleged show the action is barred by the statute of limitations. (*Vaca v. Wachovia Mortgage Corp.* (2011) 198 Cal.App.4th 737, 746.) To sustain a demurrer based on the statute of limitations, however, it must "clearly and affirmatively" appear on the face of the complaint that the cause of action is barred, not that it might be barred. (*Committee v. Green Foothills v. Santa Clara County Bd. of Supervisors* (2010) 48 Cal.4th 32, 42; *Lee v. Hanley* (2015) 61 Cal.4th 1225, 1232 [demurrer based on statute of limitations does not lie when the action may be, but is not necessarily, barred].)

Demurrers for uncertainty are disfavored. (*Lickiss v. Financial Industry Regulatory Authority* (2012) 208 Cal.App.4th 1125, 1135.) If a complaint fails to state a cause of action but there is a reasonable possibility of amendment to cure the deficiencies, then leave to amend must be granted. (*Quelimane Co. v. Stewart Title Guaranty Co.* (1998) 19 Cal.4th 26, 39.)

Procedural Note on Plaintiff's Opposition

Plaintiff's opposition fails to comply with Rule 2.109 of the California Rules of Court which requires all

pleadings filed with the Court to include page numbering. The Court expects compliance with this rule, and all applicable Court rules and statutory procedures in future filings.

Analysis

The only grounds stated in Dr. Toscano's notice of demurrer are that the action is barred by the statute of limitations of Code of Civil Procedure section 340.5. In his supporting memorandum, Dr. Toscano also raises the deficiencies in the document titled "First Amended Complaint" to which Plaintiff has responded in her opposition. The Court considers both arguments.

A. FAC Mistitled/Misfiled and Intended as "Correction" of Prayer to Original Complaint

The document Plaintiff filed in the Court's Odyssey system is titled "First Amended Complaint" and was filed as such. The FAC does not contain any causes of action or substantive factual allegations; the text consists only of a "correction" to the prayer for relief in the original complaint. The FAC refers to "CRC 2.111," but that Rule only addresses the proper format of papers filed with the Court. (Cal. R. Ct., Rule 2.111 ["The first page of each paper must be in the following form," followed by a list of 11 subparts describing the contents and line spacing for the first page of a pleading].)

Dr. Toscano points out that the FAC fails because it alleges no facts or causes of action, only the "correction" to the prayer. Dr. Toscano, like other defendants, has raised arguments supporting the demurrer directed to the complaint. The filing of an amended complaint means that the amended complaint supersedes the prior version, and the prior version is of no further force and effect. (*Lee v. Bank of America* (1994) 27 Cal.App.4th 197, 215 ["An 'amended' complaint supersedes all prior complaints. . . . The original ceases to 'perform any function as a pleading.'" [Citation omitted].], quoting *Foreman & Clark Corp. v. Fallon* (1971) 3 Cal.3d 875, 884]; *State Compensation Ins. Fund v. Superior Court* (2010) 184 Cal.App.4th 1124, 1131 ["Because there is but one complaint in a civil action [citation], the filing of an amended complaint moots a motion directed to a prior complaint. [Citation.], and "The amended complaint furnishes the sole basis for the cause of action, and the original complaint ceases to have any effect either as a pleading or as a basis for judgment."].)

Nevertheless, Dr. Toscano and other defendants urge the Court under the circumstances to consider the FAC to be a misnamed pleading, intended only as a correction to the prayer in the original complaint. They ask the Court to reach the original complaint and the demurrers to those claims as alleged therein. The Court notes that Dr. Toscano filed a demurrer to the complaint on October 22, 2025, which was taken off-calendar after Plaintiff's October 15, 2025 filing.

Despite the title, the Court agrees that the pleading Plaintiff filed on October 15, 2025 appears to have been intended only to be a correction or modification of the prayer for relief in the original complaint and not to replace the complaint. Under the circumstances, the Court will disregard the title of the October 15, 2025 pleading, except for purposes of leave to amend as granted below, and will reach the merits of the complaint filed August 7, 2025 with the corrected/modified prayer filed October 15, 2025.

Plaintiff is cautioned that litigants who choose to represent themselves are required to comply with the civil laws, rules and procedures just as represented parties. (*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984-985; *Gamet v. Blanchard* (2001) 91 Cal.App.4th 1276, 1284-1285.)

B. Demurrer to Complaint for Untimeliness Under the Statute of Limitations

Code of Civil Procedure states in pertinent part, "In an action for injury or death against a health care provider based upon such person's alleged professional negligence, the time for the commencement of action shall be three years after the date of injury or one year after the plaintiff discovers, or through the use of reasonable diligence should have discovered, the injury, whichever occurs first." The statute defines professional negligence generally as "a negligent act or omission to act by a health care provider in the rendering of professional services, which act or omission is the proximate cause of a personal injury or wrongful death." (Code Civ. Proc. § 340.5 subpart (2).) There is no dispute among the parties that this statute applies to Plaintiff's claims against the defendants.

Code of Civil Procedure section 364 requires a party to serve a Notice of Intent before commencing an action for medical negligence. (Code Civ. Proc. § 364(a) ["No action based upon the health care provider's professional negligence may be commenced unless the defendant has been given at least 90 days' prior notice of the intention to commence the action."].) The statute also provides, "If the notice is served within 90 days of the expiration of the applicable statute of limitations, the time for the commencement of the action shall be extended 90 days from the service of the notice." (Code Civ. Proc. § 364(d).)

Plaintiff alleges she was hospitalized on April 20, 2024 and was given improper medications which caused her to suffer various injuries, including having to be ventilated. (Compl. Gen. Negl. C/A para. GN-1; Exh. A (COA) to Compl. "Factual Allegations" ¶¶ 12-18.) She alleges she served "Notices of Intent" on April 19, 2025, "one day before the statute of limitations expired." (Compl. Exh. A (COA) Factual Allegations ¶ 20.) She filed her complaint on August 7, 2025, approximately 110 days after the Notices of Intent are alleged to have been served, and more than fifteen months after her hospitalization on April 20, 2024.

Plaintiff contends that the complaint on its face does not show that it is barred by the statute of limitations. Reasonably interpreting the allegations, the complaint asserts her injury occurred on April 20, 2024 when she was given improper medications, the only specific date alleged multiple times in her complaint. (Compl. Gen. Negl. C/A GN-1 and Exh. A (COA) Factual Allegations ¶ 12.) Plaintiff alleges that the statute of limitations was to expire on April 20, 2025, as she alleges she served the Notices of Intent one day prior to its expiration. (Compl. Exh. A (COA) Factual Allegations ¶ 20.)

Plaintiff asserts that she pled "tolling" of the statute of limitations under Code of Civil Procedure section 364 based on her allegation that she served Notices of Intent within the statute of limitations on April 19, 2025. (Opp. Section III [no page numbers].) Plaintiff, however, does not address that under Code of Civil Procedure section 364(d), service of the Notices of Intent only tolls the date for filing the complaint by 90 days. August 7, 2025 is more than 90 days after April 19, 2025 when she alleges she served the Notices of Intent. (Compl. Exh. A (COA) Factual Allegations ¶ 20.) On its face, the complaint was filed more than one year after the statute of limitations expired, based on Plaintiff's own allegation, and more than 90 days after she served the Notices of Intent under Code of Civil Procedure section 364.

Plaintiff though also asserts that her claims are timely based on the discovery rule, citing *Jolly v. Eli Lilly & Co.* (1988) 44 Cal.3d 1103, 1109.) (Opp. Section III.) The general rule is that the statute of limitations begins to accrue when all elements of the claim exist. (*Fox v. Ethicon Endo-Surgery, Inc.*

(2005) 35 Cal.4th 797, 806.) The delayed discovery rule postpones the accrual date of a cause of action "until the plaintiff is aware of her injury and its negligent cause." (*Jolly, supra*, 44 Cal.3d at 1109 [emphasis added].) (*See also Fox, supra*, 25 Cal.4th at 803 ["[U]nder the delayed discovery rule, a cause of action accrues and the statute of limitations begins to run when the plaintiff has reason to suspect an injury and some wrongful cause."].)

In the opposition, Plaintiff generally asserts that the discovery rule extends the statute of limitations and that whether the discovery rule applies is a "fact-intensive inquiry." (Opp. Section III.) That does not excuse Plaintiff from actually alleging such facts in her operative complaint to support that the delayed discovery rule may apply to extend the statute of limitations when on the face of the complaint, the complaint shows it was untimely. To the contrary, California law requires such facts to be alleged in the complaint. To plead the delayed discovery rule, " '[a] plaintiff whose complaint shows on its face that his claim would be barred without the benefit of the discovery rule must specifically plead facts to show (1) the time and manner of discovery *and* (2) the inability to have made earlier discovery despite reasonable diligence.' [Citation omitted.]" (*Fox, supra*, 35 Cal.4th at 808 [emphasis added].)

Plaintiff has not pled any facts in her complaint to support application of the delayed discovery rule to extend the statute of limitations, including those asserted in her opposition. On the face of the complaint, her complaint was untimely.

The demurrer to the complaint on the grounds of the statute of limitations is **SUSTAINED**.

Conclusion and Ruling

Dr. Toscano's general demurrer to the complaint in its entirety based on the statute of limitations is **SUSTAINED, WITH LEAVE TO AMEND**. It is not clear to the Court whether Plaintiff will be able to amend to avoid the statute of limitations under the circumstances, but the Court will allow Plaintiff a chance to try to do so. Though the Court does not reach the other grounds for demurrer in light of this ruling, leave to amend includes leave to address any other matters subject to the challenges raised in the demurrer if Plaintiff chooses to do so in addition to alleging additional facts to address the statute of limitations.

For purposes of filing an amended pleading, any amended pleading must be titled as the **Second Amended Complaint** to avoid confusion in the Court's register of action in light of the "first amended complaint" on file. The Court also expects compliance with Code of Civil Procedure section 471.5 which requires service of an amended complaint "upon the defendants affected thereby." (Code Civ. Proc. § 471.5(a).) Based on this ruling, and concurrent rulings sustaining demurrers by the other defendants, any amended complaint must be served on all defendants.

12. 9:00 AM CASE NUMBER: C25-02273
CASE NAME: LINDA WILLIAMS VS. SAN RAMON REGIONAL MEDICAL CENTER
***HEARING ON MOTION IN RE: STRIKE 1ST AMENDED COMPLAINT**
FILED BY: GROVE, JUDITH, RN
TENTATIVE RULING:

Before the Court is a motion to strike portions of the prayer in the first amended complaint by defendants San Ramon Regional Medical Center, Judith Grove, RN and Rene Ochoa, RN ("Moving Parties"). Based on the Court's concurrent ruling sustaining the Moving Parties' demurrer, the motion to strike is **DENIED AS MOOT**.

13. 9:00 AM CASE NUMBER: C25-02273
CASE NAME: LINDA WILLIAMS VS. SAN RAMON REGIONAL MEDICAL CENTER
HEARING IN RE: DR. JOSEPH TOSCANO'S JOINDER IN DEMURRER TO FIRST AMENDED COMPLAINT
BY SAN RAMON REGIONAL MEDICAL CENTER
FILED BY: TOSCANO, DR. JOSEPH
TENTATIVE RULING:

See Line 10 above.

14. 9:00 AM CASE NUMBER: C25-02273
CASE NAME: LINDA WILLIAMS VS. SAN RAMON REGIONAL MEDICAL CENTER
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: MALANI, DR. NARENDRA K
TENTATIVE RULING:

Before the Court is a demurrer to the first amended complaint by defendant Dr. Narendra K. Malani. For the reasons set forth, For the reasons set forth, and on the grounds and subject to the terms and provisions of this ruling, the demurrer is **SUSTAINED, WITH LEAVE TO AMEND**.

Background

Plaintiff Linda H. Williams, in pro per, filed her complaint initiating this action on August 7, 2025. The complaint names as defendants San Ramon Regional Medical Center, Tenet Healthcare Corporation, Dr. Narendra K. Malani, Dr. Joseph Toscano, Judith Grove, RN, and Rene Ochoa, RN. The Court form complaint states a single, unnumbered cause of action for "general negligence" in which she makes the supporting factual allegation that on April 20, 2024, the defendants negligently administered medication to her to which she contends she was allergic and which were listed in a "Do Not Give" instruction. She alleges she suffered "life-threatening anaphylaxis, requiring intubation and mechanical ventilation," among other things. (Compl. General Negl. C/A.) She then attached to the form complaint and the general negligence cause of action a document titled "Exh. A (COA) Detailed Statement of Facts," in which she includes a section called "factual allegations" and then a first cause of action for medical malpractice, a second cause of action for negligence, a third cause of action for